

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

September 25, 2023

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Mr. Roybal, and pursuant to support received by Mr. Esquibel and Mr. Segrave, item #11 was removed from the Consent Agenda. Upon request by Mr. Laybourn, and pursuant to support received by Mr. Johnson and Dr. Aldrich, item #20(b) was removed from the Consent Agenda. Mr. Segrave moved to approve remaining items, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on September 11, 2023. Motion (per Consent Agenda) carried.

ORDINANCE –3rd READING – Amending Section 15.08.031, Building Permit Fees- Exceptions for Incentivization Program, of Chapter 15.08, International Building Code Adopted, of Title 15, Buildings and Construction, of the Code of the City of Cheyenne, Wyoming, to create incentives for attainable housing and historic preservation. Reporting for Public Services Committee, Mr. Cook moved to approve on third and final reading, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body. Public comment was made by: Stephanie Lowe, local Preservation Specialist and Dan Dorsch, Habitat for Humanity of Laramie County. (#4525)

ORDINANCE –2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from MUB Mixed-Use Business Emphasis to P Public District for land located at Lot 1, Block 1, Back 40 Subdivision, Third Filing. Mr. Cook moved to approve on second reading, seconded by Dr. Rinne. Motion carried. Voting “yes” – all members of the governing body. Comment was made by the following member of the governing body: Mr. Cook.

ORDINANCE –2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from CB Community Business to MUB Mixed-Use Business for land located on Lots 3, 4, 5, 6, 7, and 8, Block 1, Hitching Post Plaza, 3rd Filing. Mr. Cook moved to approve on second reading, seconded by Mr. Segrave. Mr. Cook moved to amend by substitute dated September 14, 2023, seconded by Mr. Segrave. Motion to amend by substitute carried. Voting “yes” – all members of the governing body. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body. Public comment was made by: Casey

Palma, Palma Land Planning, agent for the owner. Comment was made by the following member of the governing body: Dr. Aldrich.

ORDINANCE –2nd READING – Amending certain Sections of Chapter 13.20, Wastewater Treatment and Disposal of Title 13, Public Services of the Municipal Code of the City of Cheyenne, Wyoming, regarding wastewater treatment and disposal. Mr. Cook moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE –1st READING – Creating Section 12.04.240, Mobile Storage Containers on Public Right-of-Way; Permit Required, of Chapter 12.04, Streets, Sidewalks and Driveways Generally, of Title 12, Streets, Sidewalks and Public Places, of the Municipal Code of the City of Cheyenne, Wyoming and making a conforming amendment as specified – referred to Finance Committee. (Sponsors – Dr. Aldrich, Mr. Segrave and Mr. White)

RESOLUTION – Re-appropriating the Fiscal Year 2024 Budget of the City of Cheyenne according to the provisions of W.S. §§16-4-112 & 16-4-113. Reporting for Finance Committee, Mr. White moved to adopt, seconded by Dr. Aldrich. Mr. Roybal moved to amend by removing the proposed increase of \$720 from the City Council line item, seconded by Mr. Johnson. Motion to amend carried. Voting “yes” – all members of the governing body with the exception of Dr. Aldrich, Mr. Laybourn and Mr. Segrave voting “no”. Motion as amended carried. Voting “yes” – all members of the governing body. Public comment was made by: Michael White. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Cook, Mr. Esquibel, Mr. Johnson, Mr. Laybourn, Dr. Rinne and Mr. Roybal. (#6352)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Shining D North at Sweetgrass, a replat of all of Block 15 (Lot 1 thru 8 inclusive), and Open Space Tract AA, and all of Lot 1, Block 16, Sweetgrass, 7th Filing, and a portion of adjacent rights-of-way, City of Cheyenne, Laramie County, Wyoming (located east of Sweetgrass Drive and south of E College Drive). Motion (per Consent Agenda) carried. (#6353)

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for R and R at Sweetgrass, a replat of all of Lots 1, 2, & 3, and Tract T , Block 8, Sweetgrass, 2nd Filing, and a portion of adjacent rights-of-way, City of Cheyenne, Laramie County, Wyoming (located southeast of the intersection of Sweetgrass Drive and E College Drive). Mr. Cook moved to adopt, seconded by Mr. Segrave. Mr. Cook moved to amend by substitute map dated September 11, 2023, seconded by Mr. Segrave. Motion to amend by substitute map carried. Voting “yes” – all members of the governing body. Main motion as amended by substitute map carried. Voting “yes” – all members of the governing body. Public comment was made by: Casey Palma, Palma Land Planning, agent for the owner. Comment was made by the following member of the governing body: Dr. Aldrich. (#6354)

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Hitching Post Plaza, 3rd Filing, a replat of Lot 3, Hitching Post Plaza, 2nd Filing, City of Cheyenne, Laramie County, Wyoming (located north of Lincolnway and west of Paul Smith Way). Mr. Cook moved to adopt, seconded by Mr. Segrave. Mr. Cook moved to amend by substitute map dated September 11, 2023, seconded by Mr. Segrave. Motion to amend by substitute map carried. Voting “yes” – all members of the governing body. Main motion as amended by substitute map carried. Voting “yes” – all members of the governing body. (#6355)

[CA] RESOLUTION – Expressing the support of the Governing Body for the designation of the High Plains Arboretum as a State Historic Site by the Wyoming State Legislature. Motion (per Consent Agenda) carried. (#6356)

[CA] RESOLUTION – Certifying compliance with Wyoming Statute § 15-1-402 for the City-initiated annexation of various tracts of land completely surrounded by current City limits situate in northwest Cheyenne generally located north of Dell Range Boulevard and west of Powderhouse Road – referred to Public Services Committee. (Sponsors – Mr. Esquibel, Mr. Segrave, and Mr. White)

[CA] RESOLUTION – Certifying compliance with Wyoming Statute § 15-1-402 for a City-initiated annexation of tracts of land in Township 14 North, Range 67 West of the 6th p.m. for an area generally located west of Interstate 25, north of State Highway 210, east of Roundtop Road, and south of Horse Creek Road – referred to Public Services Committee. (Sponsor – Mr. Segrave)

[CA] RESOLUTION – Expressing the will of the Governing Body for the temporary installation of additional traffic control devices at specified locations along Gardenia Drive to combat the serious problem of speeding vehicles – referred to Public Services Committee. (Sponsors – Mr. Cook, Mr. Laybourn and Mr. Segrave)

[CA] RESOLUTION – Requiring the study and submittal of a report to the Governing Body regarding vehicles violating posted speed limits on the City’s roadways and vehicles disregarding traffic signals and running red lights – referred to Public Services Committee. (Sponsors – Mr. Cook, Mr. Laybourn and Mr. Segrave)

[CA] Contract between the City of Cheyenne and the Cheyenne Housing Authority to provide supportive senior services (General Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$100,000.00). (#7828)

Lease agreement between the City of Cheyenne and GBP, LLC for the property located at 6725 Faith Drive (Recreation Programs Fund). Mr. White moved to approve in an amount of \$162,000.00, seconded by Mr. Roybal. Mr. White moved to amend by substitute dated September 21, 2023, seconded by Mr. Roybal. Motion to amend by substitute carried. Voting “yes” – all members of the governing body. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body. Comments were made by the following members of the governing body: Mayor Collins, Mr. Cook and Mr. Laybourn. (#7829)

[CA] Agreement between the City of Cheyenne and Creative Outdoor for construction of and placement of benches, shelters, and concrete pads within and along bus routes, upon which advertising may be sold and establishing a fee for use of the City right-of-way (Revenue to the City) – referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and Laramie County to provide public transportation services to Laramie County Community College and for an area of Laramie County immediately adjacent to the City (Revenue to the City) – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and WYDOT for a Wyoming Rural Public Transportation grant to assist in providing a local match for operating funds for the Transit Program for FY 2024 (Revenue to the City) – referred to Finance Committee.

[CA] Juvenile Housing Agreement between the City of Cheyenne and Laramie County for the housing of juvenile detainees in the Laramie County Juvenile Services Center located at the Archer Complex (General Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-1-24 for furnishing furniture for three (3) new fire stations for the Cheyenne Fire Rescue Department (2021 Specific Purpose Option Tax Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-3-24 for furnishing loose equipment for five (5) fire apparatus for the Cheyenne Fire Rescue Department (2019-2022 Optional 1% Sales Tax Fund and 2021 Specific Purpose Option Tax Fund) – referred to Finance Committee.

[CA] Consideration of Bid#S-3-24 for an Agreement between the City of Cheyenne and Reiman Corp. for the Yellowstone Road and Central Avenue Concrete Repairs Project (2019-2022 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Consideration to purchase between the City of Cheyenne and RCN Technologies for the purchase of twelve (12) connected emergency blue light call stations (2021 Specific Purpose Option Tax Fund) – referred to Finance Committee.

Appointments of Brian Bau to the Downtown Development Authority Board; David Johnson to the Cheyenne Housing Authority; and Jeff Fassett to the Board of Public Utilities. Dr. Aldrich moved to approve, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Collins who did not vote (Mayoral appointments).

Comment was made by the following member of the governing body related to the Voucher Report: Mr. Johnson.

There were no comments made on the Revenue Report as presented.

Public comment was made by the following individuals under other business: Ed Galavotti, Larry Prock, Kevin & Sheryl Steele, Bonnie Kruse, Kay Nation, Carol Davinroy, Leslie Connaghan and Eleanor Grinnell.

The following members of the governing body made comments under other business: Dr. Aldrich, Mr. Cook, Mr. Esquibel, Mr. Johnson, Mr. Roybal and Mr. Segrave.

Mr. Johnson moved to meet in executive session pursuant to Wyoming Statute §16-4-405(a)(iii), seconded by Mr. Esquibel. Motion carried. Voting “yes” – all members of the governing body. Mayor Collins announced members would meet in executive session, not open to the public and stated there would be no action taken by the governing body as a result of the executive session, and that the regular City Council meeting would officially conclude at the close of the executive session. The following staff members were in attendance: Stefanie Boster, City Attorney, Kristina F. Jones, City Clerk, Tom Cobb, City Engineer, Doug Klahn, Construction

Manager, Seth Lloyd, Planning & Development and Jean Vetter, Greenway and Parks Planner.
(Clerk's Note: executive session convened at 7:38 p.m.)

There being no further business to come before the governing body, the meeting was officially adjourned at 8:26 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
October 4, 2023